

Matter Number:	WC	/	2024	/	227
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Form 24 – Notice to admit facts

Industrial Relations Act 2016, section 989

Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

Applicant/Appellant:	Cory Lea Shepherd
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v

Respondent:	Workers' Compensation Regulator
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PLEASE NOTE: If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file it with this form.

To:	Workers' Compensation Regulator Attention: Ms Renee Matheson, Senior Appeals Officer PO Box 10119, Brisbane Adelaide Street QLD 4000
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Take notice that the [] applicant **[X] appellant** [] respondent in this proceeding proposes to prove the facts specified below, and if you do not within 14 days serve a notice on the [] applicant **[X] appellant** [] respondent disputing the facts you are taken to admit, for this proceeding only, the facts specified in this notice.

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
A	THE ROLE, AND WHAT IT REQUIRED	
1	Metro South Hospital and Health Service produced a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03". (Annexure A, Tab 1)	
2	That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". (Annexure A, Tab 1)	
3	That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital". (Annexure A, Tab 1)	
4	That role description names the contact for the position as "Chloe Taylor". (Annexure A, Tab 1)	
5	That role description states, as a key responsibility: "Maintain call queues to minimum at all times". (Annexure A, Tab 1)	
6	That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate". (Annexure A, Tab 1)	
7	That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information". (Annexure A, Tab 1)	
8	That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes". (Annexure A, Tab 1)	

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9	That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined". (Annexure A, Tab 1)	
10	That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned". (Annexure A, Tab 1)	
11	That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a multi-disciplinary team in a changing environment". (Annexure A, Tab 1)	
12	That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces". (Annexure A, Tab 1)	
13	That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". (Annexure A, Tab 1)	
14	Metro South Hospital and Health Service approved three movement forms recording changes to the Appellant's working hours, dated 27 February 2026, 17 April 2026 and 9 June 2026, each approved by Mr Scott Hughes as delegate. (Annexure A, Tab 17-19)	
15	Each of those three movement forms records the Appellant's shift arrangements as "Continuous Shift Worker". (Annexure A, Tab 17-19)	
16	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant ceased to be a continuous shift worker at any time before 18 June 2024.	
B	THE APPELLANT'S EMPLOYMENT, AND THE 17 JUNE 2020 AGREEMENT	
17	The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020.	
18	Review Decision 69983 records the Appellant's submission that the 8-hour agreement "was no longer fit for purpose since your transition from casual employment to full-time". (Annexure A, Tab 25)	
19	That decision records the Appellant's submission that "since your commencement, you have signed new terms and working arrangements as a full-time employee". (Annexure A, Tab 25)	
20	That decision records the employer's confirmation that there had been a "change to your employment contract and adjustments in your working hours" since 17 June 2020. (Annexure A, Tab 25)	
21	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed at any time between 17 June 2020 and 18 March 2024.	
22	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour agreement of 17 June 2020 could be terminated by him.	
23	Review Decision 69983 records that Ms Sandra Johnstone was the Switchboard Line Manager as at 8 December 2021. (Annexure A, Tab 25)	
24	That decision records that Ms Danielle Cook was the "previous Switchboard Manager", and that "Ms Taylor was subsequently appointed to the Switchboard Manager role". (Annexure A, Tab 25)	

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25	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was the Switchboard Manager on 17 June 2020.	
C	THE HOURS THE APPELLANT SOUGHT, AND OBTAINED	
26	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight." (Annexure A, Tab 2)	
27	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees". (Annexure A, Tab 2)	
28	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible." (Annexure A, Tab 2)	
29	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?" (Annexure A, Tab 2)	
30	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster". (Annexure A, Tab 4)	
31	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department." (Annexure A, Tab 2, 3, 4, 7, 8A)	
32	That application of 31 August 2023 records the Appellant's intention to become the Switchboard union delegate, in the same sentence as his willingness to take on additional night shifts. (Annexure A, Tab 4)	
33	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability." (Annexure A, Tab 3)	
34	That email states: "I have no issues with shift work." (Annexure A, Tab 2, 3, 4, 7, 8A)	
35	That email attached a draft roster spreadsheet prepared by the Appellant. (Annexure A, Tab 2, 3, 4, 7, 8A)	
36	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI." (Annexure A, Tab 3)	
37	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved." (Annexure A, Tab 5)	
38	That email states: "happy to commence Full-time hours from the 16th October 2023".	
D	STRESSOR 1(a) - THE DATABASE, AND THE DIRECTIVES ISSUED WITHOUT CONSULTATION	
39	On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises." (Annexure A, Tab 1A)	
40	That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database."	

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41	That email states that Ms Stibbard's working hours were "every Tuesday and second Monday, 8:00 - 16:00".	
42	That email states that a person wanting an entry updated was to "contact me directly, either via email or extension".	
43	That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor.	
44	That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back".	
45	That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email."	
46	Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role." (Annexure A, Tab 25)	
47	That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard." (Annexure A, Tab 25)	
48	That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor." (Annexure A, Tab 25)	
49	Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry." (Annexure A, Tab 25)	
50	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the role description for the position of Administration Officer, Switchboard Services was amended at any time after 18 July 2023.	
51	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.	
52	On 16 June 2023 the Appellant wrote raising, among other workplace issues: "No consultation of the team members or the department when making major changes such as additional shift... commence/finish [times]."	
53	On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today". (Annexure A, Tab 8B)	
54	That email lists five occasions on 2 and 3 May 2024 on which a call was routed by the Switchboard to a number other than the number sought, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46. (Annexure A, Tab 8B)	
55	That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER". (Annexure A, Tab 8B)	
56	On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May". (Annexure A, Tab 8B)	
57	That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am. (Annexure A, Tab 8B)	
58	That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion. (Annexure A, Tab 8B)	

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59	The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.	
60	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time between 3 May 2024 and 9 May 2024.	
61	Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams." (Annexure A, Tab 8B)	
62	Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm". (Annexure A, Tab 25)	
63	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between 23 August 2023 and 17 May 2024.	
64	The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.	
65	On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off." (Annexure A, Tab 8B)	
66	On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", directing that "all calls that switch transfer to the MASPER phone #5223 are being introduced". (Annexure A, Tab 8B)	
67	On 21 May 2024 Ms Reese asked the Appellant to identify the directives about which he had consultation concerns.	
68	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard". (Annexure A, Tab 6)	
69	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised." (Annexure A, Tab 6)	
70	That email states: "This new process is effective from today." (Annexure A, Tab 6)	
71	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours." (Annexure A, Tab 6)	
72	Ms Taylor signed that email as "A/Switchboard Manager". (Annexure A, Tab 6)	
73	Ms Taylor's email to all Switchboard staff of 17 May 2024 at 9:30 am states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30." (Annexure A, Tab 9)	
74	That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week." (Annexure A, Tab 5, 9, 9C, 10, 13, 14)	
75	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 16(b)(iv): "Ms Taylor then raised this as an issue with Ms Reese at 1:20 pm".	

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76	On 17 May 2024 at 1:20 pm Ms Taylor sent an email to Ms Adriana McNamee with the subject "FW: Office Hours and Departmental Directives", which states: "when staff call in for any leave to please contact me either via switch, office or my mobile." (Annexure A, Tab 9C)	
77	On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times". (Annexure A, Tab 8)	
78	That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed." (Annexure A, Tab 8, 9A, 9B, 11)	
79	On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct". (Annexure A, Tab 9A)	
80	That reply of Ms Reese asked the Appellant to retract his email. (Annexure A, Tab 9A)	
81	On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours." (Annexure A, Tab 9A)	
82	On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised." (Annexure A, Tab 9B)	
83	That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?" (Annexure A, Tab 9B)	
84	The email of Ms Taylor to Ms McNamee of 17 May 2024 at 1:20 pm states, of the Appellant's telephone call of 13 May 2024: "I told him I am more than happy to cover his shift and if he was unwell, it would be preferred for him not to come into work." (Annexure A, Tab 9C)	
85	That email of Ms Taylor states: "I sent an email (attached) to advise Cory again of the call process and a query about his leave. I also sent a follow up text, advised by the last HR rep to also follow up with a text to Cory". (Annexure A, Tab 8, 9A, 9B, 11)	
86	That email of Ms Taylor records that on each of 13, 14 and 15 May 2024 the Appellant notified his unavailability by telephoning the Switchboard. (Annexure A, Tab 8, 9A, 9B, 11)	
87	No document recording that Ms McNamee sought the Appellant's account of the matters described in Ms Taylor's email of 17 May 2024 at 1:20 pm has been identified or disclosed in the Respondent's disclosed material presently before the Commission.	
E	STRESSOR 1(a) - THE DELAY IN COMMUNICATION AND THE MATTERS RAISED IN MAY 2024	
88	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area." (Annexure A, Tab 11)	
89	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues." (Annexure A, Tab 11)	

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90	The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am.	
91	The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am.	
92	Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm.	
93	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Mr Parry communicated with Ms Marriott, or with the Integrated Respiratory Service, on 20 May 2024.	
94	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the document "Outpatients Department - Clinic contact Details" was amended at any time on or before 20 May 2024.	
95	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Switchboard staff were notified, at any time on or before 20 May 2024, of the modifications made to the document "Outpatients Department - Clinic contact Details" on 22 February 2024.	
96	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was rostered to work after 2:05 pm on 20 May 2024.	
97	Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024. (Annexure A, Tab 11)	
98	No document created on 20 May 2024 recording the discussion referred to in that reply has been identified or disclosed in the Respondent's disclosed material presently before the Commission.	
99	The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am. (Annexure A, Tab 11)	
100	The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm. (Annexure A, Tab 9)	
101	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document." (Annexure A, Tab 11)	
102	That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024. (Annexure A, Tab 5, 9, 9C, 10, 13, 14)	
103	That email of the Appellant was sent from the Logan Switch account. (Annexure A, Tab 11)	
104	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical." (Annexure A, Tab 11)	
105	That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing." (Annexure A, Tab 11)	
106	That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024. (Annexure A, Tab 5, 9, 9C, 10, 13, 14)	
107	Ms Stibbard's on-call roster email of 13 May 2024 was addressed to the Switchboard team and included Mr Richard Parry among its recipients. (Annexure A, Tab 9)	

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108	Ms Taylor's email of 17 May 2024 headed "Switchboard Manager - On call and Hours" included Mr Richard Parry among its recipients. (Annexure A, Tab 9)	
109	No document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024 has been identified or disclosed in the Respondent's disclosed material presently before the Commission.	
110	No document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024 has been identified or disclosed in the Respondent's disclosed material presently before the Commission.	
111	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day.	
112	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.	
113	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile." (Annexure A, Tab 9)	
F	STRESSOR 1(d) - THE SPECIAL PANDEMIC LEAVE APPLICATION OF FEBRUARY 2024	
114	The myHR leave request history for Process Reference 15480560 records: "Employee - Cory Shepherd : created draft", 20.02.2024, 11:24:48. (Annexure A, Tab 28)	
115	That history records: "Employee - Cory Shepherd : submitted request", 20.02.2024, 11:41:27. (Annexure A, Tab 28)	
116	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 21.02.2024, 12:23:43. (Annexure A, Tab 28)	
117	That history records: "Employee - Cory Shepherd : submitted request", 28.02.2024, 06:07:32. (Annexure A, Tab 28)	
118	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 29.02.2024, 09:06:07. (Annexure A, Tab 28)	
119	That history records: "Employee - Cory Shepherd : submitted request", 29.02.2024, 11:07:28. (Annexure A, Tab 28)	
120	That history records: "Reviewer - Chloe Donovan-Taylor : approved request", 29.02.2024, 11:21:03. (Annexure A, Tab 28)	
121	That history records: "Manager - Tammy Reese : approved request", 01.03.2024, 16:05:08. (Annexure A, Tab 28)	
122	That history records the Appellant as having submitted the request on three occasions. (Annexure A, Tab 28)	
123	That history records Ms Taylor as having declined the request on two occasions. (Annexure A, Tab 28)	
124	The interval between the submission recorded at 11:07:28 on 29 February 2024 and the approval recorded at 11:21:03 on the same day is thirteen minutes and thirty-five seconds.	
125	The interval between the draft recorded at 11:24:48 on 20 February 2024 and the approval recorded at 16:05:08 on 1 March 2024 is ten days, four hours and forty minutes.	
126	In that history Ms Taylor is identified as "Reviewer" and Ms Reese is identified as "Manager". (Annexure A, Tab 28)	

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127	The Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms Noelle Cridland as Health Service Chief Executive and effective as at 5 December 2022, sub-delegates "the power to approve/not approve paid Special Pandemic Leave in accordance with Directives 05/17 and 01/20 respectively, for this pandemic event (COVID-19) only, to a Band 9 delegate". (Annexure A, Tab 29)	
128	That Instrument states: "This Instrument does not permit the further sub-delegation of the powers outlined in (a) above." (Annexure A, Tab 29)	
129	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was a Band 9 delegate at any time in February 2024.	
130	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Reese was a Band 9 delegate at any time in February or March 2024.	
131	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the person who exercised the power sub-delegated by that Instrument in respect of Process Reference 15480560.	
132	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 14(c): "Ms Taylor asked the appellant to submit a Special Pandemic Leave request via MyHR and attach a statutory declaration or photo evidence of his test".	
133	That amended statement of facts and contentions states at paragraph 14(d): "Ms Taylor did decline the application because on her assessment, the required statutory declaration was not attached to the MyHR submission. Ms Taylor asked the appellant to resubmit".	
134	That amended statement of facts and contentions states at paragraph 14(e): "says that a review indicates that in fact, the attachments were present on the appellant's submission".	
135	That amended statement of facts and contentions states at paragraph 14(f): "says this was a matter of human error by Ms Taylor on the background of high work demands surrounding the management of staff with COVID-19".	
136	Review Decision 69983 records that on 20 February 2024 the Appellant messaged Ms Taylor stating he had tested positive for Covid, and that Ms Taylor "requested that you send it to her so she could submit it in MyHR". (Annexure A, Tab 25)	
137	That decision records that Ms Taylor "noted the statutory declaration you provided was sufficient evidence" and "requested for you to resubmit your leave days". (Annexure A, Tab 25)	
138	That decision records that the Appellant "messed you were confused about why your amended leave request was declined" and "noted you did everything as required". (Annexure A, Tab 25)	
139	The myHR submissions report produced as Item 11 records a Smart Leave Request with process number 15480560, submitted on 20 February 2024, with an effective date of 20 February 2024, a processing date of 1 March 2024, and a status of "Completed". (Annexure A, Tab 15)	
140	That report records the initiator of that Smart Leave Request as the Appellant. (Annexure A, Tab 15)	
141	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any other Switchboard employee was required to submit a Special Pandemic Leave request personally through myHR in February 2024.	
G	STRESSOR 1(b) - THE COMMUNICATION BOOK, AND MS TAYLOR'S EMAIL OF 6 JUNE 2023	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
142	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 12(a): "admits that the Ms Taylor did remove pages from the Communication Book on or around 6 June 2023".	
143	That amended statement of facts and contentions states at paragraph 12(b): "says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email".	
144	On 6 June 2023 at 4:05 pm Ms Taylor sent an email to Ms Reese with the subject "Fwd: Communication Book Update". (Annexure A, Tab 1B)	
145	That email states: "I was not aware of who put this entry in at the time but I took it out last week as it was clearly an indirect dig at the team and there is already a procedure to follow with this certain entry."	
146	That email states: "I just feel like it's being used as a 'burn book' more than a professional tool that switchboard can use to communicate."	
147	Beneath it in the same document is Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, subject "Communication Book Update", copied to Switchboard staff including the Appellant.	
148	That email of 9:57 am states: "This is not used to simply put your point across or make any indirect comments towards the team."	
H	STRESSOR 1(c) - THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE	
149	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it." (Annexure A, Tab 2)	
150	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight." (Annexure A, Tab 4)	
151	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period". (Annexure A, Tab 2, 3, 4, 7, 8A)	
152	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc." (Annexure A, Tab 2)	
153	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email." (Annexure A, Tab 4)	
154	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted. (Annexure A, Tab 3)	
155	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process." (Annexure A, Tab 3)	
156	The Appellant did not submit a grievance under HR Policy E12 in 2023. (Annexure A, Tab 3)	
I	THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT	
157	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile." (Annexure A, Tab 10)	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
158	On 13, 14 and 15 May 2024 the Appellant notified his unavailability for his rostered shift by telephoning the Switchboard. (Annexure A, Tab 8, 9A, 9B, 11)	
159	The email of Ms Taylor of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile". (Annexure A, Tab 6)	
160	The email of Ms Taylor of 14 May 2024 at 12:08 pm states that the Appellant could contact her "either through switch or my office/mobile". (Annexure A, Tab 10)	
161	Each of those two emails identifies the Switchboard as a means by which the Appellant could contact Ms Taylor.	
162	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply with the process required of him.	
J	STRESSOR 1(g) - THE UNION DELEGATE, AND THE CONSULTATION ON ROSTERS	
163	The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015, agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster." (Annexure A, Tab 23)	
164	That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form." (Annexure A, Tab 23)	
165	The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital." (Annexure A, Tab 22)	
166	That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH." (Annexure A, Tab 22)	
167	That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff". (Annexure A, Tab 22)	
168	That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE." (Annexure A, Tab 22)	
169	That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties." (Annexure A, Tab 22)	
170	That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume." (Annexure A, Tab 22)	
171	That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift." (Annexure A, Tab 22)	
172	The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff, unions and stakeholders were invited to provide feedback by 8 December 2024. (Annexure A, Tab 23)	
173	That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed rosters were approved with a date effective of 20 January 2025. (Annexure A, Tab 23)	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
174	On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!" (Annexure A, Tab 24)	
175	The Appellant was endorsed as a workplace delegate on or about 3 November 2025. (Annexure A, Tab 24)	
176	The period between April 2023, when the Appellant expressed interest in assuming the role of union delegate, and 3 November 2025, when he was endorsed as a workplace delegate, is approximately thirty-one months. (Annexure A, Tab 24)	
177	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.	
178	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024.	
K	STRESSOR 2 - THE PAY CORRECTION, AND THE THREAD "COREY SHEPHERD 388372 PAY ISSUES"	
179	The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues". (Annexure A, Tab 12)	
180	The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant. (Annexure A, Tab 12)	
181	That message is signed "Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services, Corporate Enterprise Solutions, Corporate Services Queensland Health". (Annexure A, Tab 12)	
182	That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance." (Annexure A, Tab 12)	
183	That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775." (Annexure A, Tab 12)	
184	That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour." (Annexure A, Tab 12)	
185	That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime." (Annexure A, Tab 12)	
186	That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime." (Annexure A, Tab 12)	
187	That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended." (Annexure A, Tab 12)	
188	The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant. (Annexure A, Tab 12)	
189	The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant. (Annexure A, Tab 12)	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
190	That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay." (Annexure A, Tab 12)	
191	The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues". (Annexure A, Tab 12)	
192	That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted." (Annexure A, Tab 13)	
193	The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign". (Annexure A, Tab 14)	
194	That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval." (Annexure A, Tab 14)	
195	The myHR submissions report produced as Item 11 records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024. (Annexure A, Tab 15)	
196	That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)". (Annexure A, Tab 15)	
197	That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe". (Annexure A, Tab 15)	
198	That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant. (Annexure A, Tab 15)	
199	That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed". (Annexure A, Tab 15)	
200	That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed". (Annexure A, Tab 15)	
201	That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed". (Annexure A, Tab 15)	
202	That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573, submitted 27 March 2024; 15969838, submitted 9 April 2024; 16328886, submitted 15 May 2024; and 16450619, submitted 28 May 2024. (Annexure A, Tab 15)	
203	In that report, process numbers increase as submission dates increase. (Annexure A, Tab 15)	
204	The number 15397775 falls between 15325947 and 15480560.	
205	The number 15605601 falls between 15480560 and 15848692.	
206	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 20(c): "any discrepancies or errors were remedied in a timely manner".	
207	That amended statement of facts and contentions states at paragraph 20(f): "there are no outstanding underpayments for the appellant".	
208	That amended statement of facts and contentions states at paragraph 21(c): "says Ms Taylor submitted the AVAC on 28 May 2024".	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
209	Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in that report. (Annexure A, Tab 12)	
L	STRESSOR 3 - THE ROSTER, AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024	
210	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts. (Annexure A, Tab 7)	
211	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer". (Annexure A, Tab 7)	
212	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act." (Annexure A, Tab 7)	
213	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback". (Annexure A, Tab 7)	
214	That email of Ms Reese also states: "I asked Chloe to follow upon what should be the interpretation of this section with HR". (Annexure A, Tab 7)	
215	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response." (Annexure A, Tab 7)	
216	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue." (Annexure A, Tab 8)	
217	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run thought this and we say at best there would be a rating of 11 which is moderate". (Annexure A, Tab 8, 9A, 9B, 11)	
218	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters". (Annexure A, Tab 8, 9A, 9B, 11)	
219	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great." (Annexure A, Tab 8)	
220	That email of Ms Reese to LBH_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline. (Annexure A, Tab 8)	
M	STRESSOR 3 - THE BREAK OF 17-18 MARCH 2024, THE 2020 AGREEMENT, AND THE LEAVE OF 19 MARCH 2024	
221	By email dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the roster "provides more than 10-hour breaks between shifts". (Annexure A, Tab 21)	
222	That email states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred." (Annexure A, Tab 21)	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
223	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated".	
224	That amended statement of facts and contentions states at paragraph 22(e): "says in June 2020, the Appellant signed an agreement allowing an 8-hour break between shifts".	
225	That amended statement of facts and contentions states at paragraph 22(b): "says that the appellant could refuse shifts at anytime".	
226	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.	
227	The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED". (Annexure A, Tab 16)	
228	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".	
229	That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".	
230	That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA."	
231	Review Decision 69983 records that the policy regarding fatigue leave following weekends and rostered days off is dated June 2020. (Annexure A, Tab 25)	
232	That decision records: "The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day." (Annexure A, Tab 25)	
233	That decision records that section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that "where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday". (Annexure A, Tab 25)	
N	STRESSOR 3 - THE FATIGUE LEAVE REQUEST OF 8 APRIL 2024, THE DELAY, AND THE REFUSAL OF 1 MAY 2024	
234	Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024." (Annexure A, Tab 25)	
235	That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break". (Annexure A, Tab 25)	
236	That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this". (Annexure A, Tab 25)	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
237	That decision records that in the same reply Ms Taylor "proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you". (Annexure A, Tab 25)	
238	That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment". (Annexure A, Tab 25)	
239	That decision records: "Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020." (Annexure A, Tab 25)	
240	That decision records, of the same email of 1 May 2024: "However, she noted you are able to terminate this agreement going forward." (Annexure A, Tab 25)	
241	The period between the Appellant's email of 8 April 2024 and Ms Taylor's response of 1 May 2024 is 23 days.	
242	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the Appellant's enquiry regarding fatigue leave at any time between 9 April 2024 and 1 May 2024.	
243	Review Decision 69983 records the Appellant's response of 9 August 2024 as stating that the break between the shifts of 17 and 18 March 2024 "did not include travel time", and: "If you factored in travel time, your break between shifts would have been less than 5 hours." (Annexure A, Tab 25)	
244	That decision records the employer's response of 6 September 2024 as confirming "you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract and adjustments in your working hours did not automatically invalidate the agreement". (Annexure A, Tab 25)	
245	That decision records: "The employer did not mention your shift on 18 March 2024." (Annexure A, Tab 25)	
246	That decision states: "In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply." (Annexure A, Tab 25)	
247	That decision records that payroll was, as at 1 May 2024, "still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee". (Annexure A, Tab 25)	
248	That decision records Ms Taylor as confirming "that since your commencement of full-time employment, all payments for public holidays not required had been processed". (Annexure A, Tab 25)	
O	THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS	
249	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training." (Annexure A, Tab 20)	
250	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard." (Annexure A, Tab 20)	
251	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants." (Annexure A, Tab 20)	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
252	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested." (Annexure A, Tab 20)	
253	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant." (Annexure A, Tab 20)	
254	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024." (Annexure A, Tab 20)	
P	MATTERS NOT DONE, AND MATTERS NOT AVAILABLE	
255	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.	
256	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.	
257	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.	
258	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.	
259	No document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024 has been identified or disclosed in the Respondent's disclosed material presently before the Commission.	
Q	STRESSOR 3(d) - THE RESPONDENT'S OWN REVIEW DECISION OF 24 OCTOBER 2024	
260	Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances". (Annexure A, Tab 25)	
261	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours." (Annexure A, Tab 25)	
262	That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break." (Annexure A, Tab 25)	
263	That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement." (Annexure A, Tab 25)	
264	That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature". (Annexure A, Tab 25)	
265	That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor". (Annexure A, Tab 25)	
R	THE APPELLANT'S CONTEMPORANEOUS ACCOUNT, AND THE DOCUMENTS THE RESPONDENT LISTS	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
266	The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".	
267	That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".	
268	That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.	
269	That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".	
270	That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".	
271	That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".	
272	The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.	
273	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 11: "The respondent does not admit the allegations in stressor 1(a) of the appellants statement, because there are no particulars or details to respond to."	
274	On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.	
S	FACTS ALREADY ADMITTED BY THE RESPONDENT IN THIS PROCEEDING ON 18 FEBRUARY 2026	
275	On 18 February 2026 the Respondent, by Ms Renee Matheson, Senior Appeals Officer, signed and served on the Appellant a response to the Appellant's notice to admit facts in this proceeding. (Annexure A, Tab 27)	
276	In that response the Respondent admitted paragraph 1 of that notice, being: "On 17-18 March 2024, the Appellant was rostered to finish work at 23:00 and commence his next shift at 06:00, resulting in a break of only 7 hours." (Annexure A, Tab 27)	
277	In that response the Respondent admitted paragraph 3 of that notice, being: "The Employer's 'Fatigue Risk Management Policy' and the relevant Award require a minimum break of 10 hours between shifts, or 8 hours by written agreement." (Annexure A, Tab 27)	
278	In that response the Respondent denied paragraph 4 of that notice, on the stated ground: "because in June 2020, the Appellant signed an agreement allowing an 8 hour break between shifts". (Annexure A, Tab 27)	
279	In that response the Respondent admitted paragraph 5 of that notice, being that Ms Reese stated in an email dated 7 August 2023: "I do realise in this instance there was a rostering error that was accidentally made by Chloe with regards to night shifts". (Annexure A, Tab 27)	
280	In that response the Respondent admitted "that Ms Taylor removed a page from the workplace communications book", and did not admit that the page contained the Appellant's handwriting "because the respondent does not have a copy of the page". (Annexure A, Tab 27)	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
281	In that response the Respondent admitted paragraph 8 of that notice, being: "Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety." (Annexure A, Tab 27)	
282	In admitting that paragraph the Respondent added: "and says that there was a procedure in place for this to occur". (Annexure A, Tab 27)	
283	In that response the Respondent denied paragraph 9 of that notice on the stated ground: "because there was already a procedure in place". (Annexure A, Tab 27)	
284	In that response the Respondent admitted paragraph 14 of that notice, being that in an email to Ms Reese dated 6 June 2023 Ms Taylor stated: "I did raise my voice and asked him to please stop talking over the top of me." (Annexure A, Tab 27)	
285	In that response the Respondent admitted that the Union Encouragement Policy QH-POL-248 "says words to that effect", the effect pleaded being that the Policy "requires managers to take a 'positive, supportive role' to facilitate union membership and delegate elections". (Annexure A, Tab 27)	
286	In that response the Respondent admitted "that the Appellant sent a text to Ms Taylor at 5.03pm that he was 'just putting his hand up'", and said that this was not a formal notification. (Annexure A, Tab 27)	
287	In that response the Respondent admitted "the contents of the Respondent's review unit decision", and said that this fact is not relevant because the appeal is a hearing de novo. (Annexure A, Tab 27)	
288	In that response the Respondent admitted paragraph 40 of that notice, being the instruction of Ms E Grant of Payroll of 3 May 2024. (Annexure A, Tab 27)	
289	In that response the Respondent admitted "the fact that Ms Taylor submitted the AVAC on 28 May 2024". (Annexure A, Tab 27)	
290	In that response the Respondent admitted paragraph 46 of that notice, being the email of Ms Taylor of 21 May 2024 stating that she was waiting for payroll confirmation and would submit an AVAC for the next pay run. (Annexure A, Tab 27)	
291	In that response the Respondent denied paragraphs 42 to 45 of that notice on the stated grounds: "because the comparator used does not represent a true comparator in the circumstances and because the roster was equitable". (Annexure A, Tab 27)	
T	MATTERS THE RESPONDENT DOES NOT ALLEGE	
292	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.	
293	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.	
294	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not describe any communication with the Appellant before 18 June 2024 as a warning, or as part of a disciplinary or performance management process.	
295	Paragraph 27 of the Respondent's amended statement of facts and contentions dated 13 May 2026 does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph.	

Signature:	
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Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)
Date:	____ / ____ / ____

SCHEDULE OF DOCUMENTS – ANNEXURE A

Authenticity to be admitted – Industrial Relations (Tribunals) Rules 2011, rule 49

Take notice that the appellant also asks the respondent to admit, for this proceeding only, the authenticity of the documents specified below, and that if the respondent does not within 14 days after receiving this notice serve a notice on the appellant disputing the authenticity of those documents, the respondent is taken to admit their authenticity for this proceeding only.

Tab	Document	Date	Authenticity admitted / disputed
1	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	undated	
1A	Email, Ms E Stibbard to the Appellant and the Switchboard team, "Hello & Update", produced under Tab 1 of the Stressor 1(a) particulars bundle served 11 August 2026	18 July 2023, 12:56 pm	
1B	Email, Ms C Taylor to Ms T Reese, "Fwd: Communication Book Update", with, beneath it, Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, "Communication Book Update"	6 June 2023, 4:05 pm	
2	Email chain, the Appellant to Ms C Taylor, Ms T Reese, Ms P Conaghan and Ms T Smith, "Increase of hours and Workplace issues", and the replies of Ms Taylor and Ms Reese in the same chain	7 to 8 August 2023	
3	Email, Ms T Reese to the Appellant attaching HR Policy E12; and the emails of 4 and 8 September 2023	29 August to 8 September 2023	
4	Document, the Appellant to Ms C Taylor, "Request to Increase Working Hours to Full Time Rotational Roster"; and the reply of Ms Taylor of 7 August 2023 at 1:43 pm and the email of Ms Reese to Ms Taylor of 7 August 2023 at 5:11 pm	31 August 2023	
5	Email, Ms C Taylor to the Appellant, "Approved - Permanent Full Time FTE"	27 September 2023, 1:52 pm	
6	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Afterhours Oncall Process - Switchboard"	15 April 2024, 12:39 pm	
7	Email chain, "Roster Concerns", as produced under the Regulator's tab of that name - Ms T Reese to the Appellant of 26 April 2024 at 1:52 pm; the Appellant to Ms Reese of 1 May 2024 at 1:18 pm; and Ms Reese to the Appellant of 8 May 2024 at 9:08 am	26 April to 8 May 2024	
8	Emails, Ms T Reese to Mr M Pritchard "FW: Roster Concerns" with attachment "qh-gdl-401-3.3", and Ms T Reese to LBH_HR	10 and 20 May 2024	
8A	Cover page of the attachment to that email - Fatigue risk management systems, Implementation guideline QH-GDL-401-3.3:2021	2021	

Tab	Document	Date	Authenticity admitted / disputed
8B	MASPER register email records - Ms Taylor to Vivian Kwok, MASPER Registrar, and Dr Wong, "RE: Switchboard issues 5 May, 7 May, and 8 May"; Ms Taylor to Logan Switch and Switchboard staff, "MASPER process"; and the underlying switchboard issue logs of 2 to 8 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026	9 May 2024 (issues logged 2-8 May 2024)	
9	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	
9A	Email chain, "Office Hours and Departmental Directives" - the Appellant to Ms C Taylor and Logan Switch copied to Switchboard staff, Ms T Reese and LBH_HR at 1:15 pm; the reply of Ms Reese at 6:23 pm; and the reply of the Appellant at 7:09 pm	15 May 2024	
9B	Email, Ms T Reese to the Appellant, "RE: Office Hours and Departmental Directives"	21 May 2024, 2:53 pm	
9C	Email, Ms C Taylor to Ms A McNamee, "FW: Office Hours and Departmental Directives"	17 May 2024, 1:20 pm	
10	Email, Ms C Taylor to the Appellant, "Sick leave 14.05.24"; and, on the same page, the email of Ms Taylor to Ms T Reese of 15 May 2024 at 1:07 pm forwarding it	14 and 15 May 2024	
11	Emails, Ms S Marriott to Logan Switch "Respiratory Nurse Educators"; the Appellant to Ms C Taylor; and the reply of Ms C Taylor	15 and 20 May 2024	
12	Email thread, "Corey Shepherd 388372 Pay issues" - Payroll to the Line Manager copied to the Appellant; the Appellant to Payroll; Payroll to the Appellant	3 to 13 May 2024	
13	Same thread continued - the Line Manager to the Appellant	21 May 2024, 12:33 pm	
14	Email, Ms C Taylor to the Appellant copied to Ms T Reese, "Validation of Claims older than 3 months - Please sign"	28 May 2024, 8:36 am	
15	myHR submissions report for the Appellant, produced by Metro South Health as Item 11	1 February to 31 May 2024	
16	QH Leave Takings Report for the Appellant, produced by Metro South Health as Item 15	19 March 2024	
17	Movement forms recording approved changes to working hours, approved by Mr S Hughes as delegate	27 February 2026	
18	Movement form	17 April 2026	
19	Movement form	9 June 2026	
20	Letter, Metro South Hospital and Health Service to Commissioner Dwyer, reference K-LM26/729, signed by Ms N Cridland, Chief Executive	5 June 2026	
21	Email, Ms L Forrest, Senior Consultant Human Resources, to the Appellant	7 July 2026	
22	Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital	November 2024	
23	Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital	December 2024	

Tab	Document	Date	Authenticity admitted / disputed
24	Email, Mr H Moran, Organiser, Together Queensland, to Ms C Jeffrey, Ms P Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"	3 November 2025	
25	Review Decision 69983, Workers' Compensation Regulator	24 October 2024	
26	Notice to admit facts served by the Appellant on the Respondent, to which the response at Tab 27 was given	served before 18 February 2026	
27	Respondent's response to that notice, signed by Ms R Matheson, Senior Appeals Officer	18 February 2026	
28	myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure	20 February to 1 March 2024	
29	Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms N Cridland, produced as Item 13	effective 5 December 2022	

Signature:	
Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)
Date:	____ / ____ / _____